

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
JEREMY CHARLOTTEN,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
STEVEN DIPPOLITO, Shield No. 12994, LIEUTENANT
CHRISTOPHER SCHMIDT, and POLICE OFFICERS
JOHN DOES# 1-10 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 25, 2013

Yours, etc. 

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
P.O. Steven Dippolito, Shield No. 12994, Patrol Boro Manhattan North Task Force, 151
West 100th Street, NY, NY 10025
Lieutenant Christopher Schmidt, Patrol Boro Manhattan North Task Force, 151 West
100th Street, NY, NY 10025

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, JEREMY CHARLOTTEN, by his attorneys, Jacobs & Hazan, LLP, as and for
his Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section
1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United
States Constitution, and the common law and the laws of the State of New York. On
June 27, 2012, at approximately 12:30 a.m., plaintiff, Jeremy Charlotten, while lawfully present
in the vicinity of 2224 Second Avenue, New York, New York, was subject to an unlawful
assault, battery, false arrest and false imprisonment by the defendant New York City Police
Officers. Plaintiff was deprived of his constitutional and common law rights when the individual
defendants unlawfully assaulted, battered, falsely arrested and falsely imprisoned plaintiff, and
used excessive force against plaintiff in violation of the Fourth and Fourteenth Amendments to
the United States Constitution.

PARTIES

2. Plaintiff, JEREMY CHARLOTTEN is a resident of the State of New York.

3. POLICE OFFICER STEVEN DIPPOLITO, Shield No. 12994, is and was at
all times relevant herein, an officer, employee, and agent of the New York City Police
Department.

4. POLICE OFFICER STEVEN DIPPOLITO, Shield No. 12994, is and was at all times relevant herein assigned to Patrol Boro Manhattan North Task Force.
5. POLICE OFFICER STEVEN DIPPOLITO, Shield No. 12994 is being sued in his individual and official capacity.
6. LIEUTENANT CHRISTOPHER SCHMIDT, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. LIEUTENANT CHRISTOPHER SCHMIDT is and was at all times relevant herein assigned to Patrol Boro Manhattan North Task Force.
8. LIEUTENANT CHRISTOPHER SCHMIDT is being sued in his individual and official capacity.
9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
10. Police Officers John Does #1-10 are being sued in their individual and official capacities.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
12. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.
13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
14. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On June 27, 2012, at approximately 12:30 a.m., plaintiff was lawfully in front of his apartment building located at 2224 Second Avenue, New York, New York.

19. On the night of the incident, plaintiff was with his two brothers, Jose Castro and Marc Charlotten, and Jose's girlfriend Tamara Ortiz.

20. At approximately 12:30 a.m., plaintiff, Jose, Marc and Tamara returned home to their apartment building at 2224 Second Avenue, New York, NY, after visiting Marc's wife.

21. When they arrived, plaintiff went upstairs to use the bathroom while Jose, Marc and Tamara sat outside.

22. Plaintiff then came back outside, and observed three plainclothed police officers in front of his building arresting an individual.

23. Plaintiff also observed Tamara and Jose standing outside, and plaintiff observed Jose using his iPhone to videotape the police officer arresting the individual.

24. Plaintiff observed a police officer knock the iPhone out of Jose's hand.

25. Plaintiff observed Tamara take out her iPhone and attempt to record the incident.

26. As soon as the police officer observed Tamara attempting to use her iPhone to record him, plaintiff observed the police officer smack the iPhone out of her hand, and stomp on the iPhone breaking it.

27. Plaintiff then observed Tamara bend down to pick up her broken iPhone.

28. When the officer saw Tamara bend down to pick up her iPhone, plaintiff observed the police officer punch her in the left side of her face.

29. Several minutes later, several NYPD squad cars pulled up to the scene, and plaintiff saw defendant Lieutenant Schmidt exit one of the cars.

30. Plaintiff attempted to explain to defendant Lieutenant Schmidt that one of the police officers punched Tamara in the face.

31. Thereafter, without provocation or legal justification, defendant Lieutenant Schmidt punched plaintiff in the face causing plaintiff to suffer serious physical injuries.

32. Immediately after defendant Lieutenant Schmidt punched plaintiff in the face, another police officer tackled plaintiff face first to the ground, and then several police officers punched and kicked plaintiff in his face and back.

33. At no point in time did plaintiff commit a crime, nor did the defendant police officers have any reason to believe he committed any crime.

34. Nevertheless, the defendant police officers unlawfully handcuffed and arrested plaintiff, without probable cause or legal justification.

35. Plaintiff was then unlawfully placed in an NYPD vehicle and transported to the 23rd precinct.

36. When plaintiff arrived at the 23rd precinct, he was fingerprinted, photographed and then placed into a holding cell.

37. While he was at the 23rd precinct, EMS came and treated the cuts and scrapes to plaintiff's face, shoulders, legs and back.

38. After several hours in a holding cell at the 23rd precinct, plaintiff was transported to Manhattan Central Booking.

39. After approximately 22 hours in police custody, on June 27, 2012, at approximately 10:00 p.m., plaintiff was arraigned and was released on his own recognizance.

40. Plaintiff was unlawfully charged with Disorderly Conduct among other things.

41. Thereafter, on March 16, 2013 after several court appearances, all of the charges against plaintiff were dismissed.

42. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable assault, battery, arrest and imprisonment of plaintiff.

43. The false arrest, false imprisonment, assault, battery, and use of excessive force by the individually named defendants caused plaintiff to sustain serious physical, psychological, and emotional injuries.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, and falsely arrested and imprisoned without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

48. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

49. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

FOURTH CAUSE OF ACTION

Failure to Intervene

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

54. Defendants failed to intervene to prevent the unlawful conduct described herein.

55. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

57. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligence

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. Defendants owed a duty of care to plaintiff.

60. Defendants breached that duty of care by falsely arresting, falsely imprisoning, and assaulting and battering plaintiff.

61. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

62. All of the foregoing occurred without any fault or provocation by plaintiff.

63. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Jeremy Charlotten. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

67. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Assault

70. Plaintiff repeats and realleges paragraphs 1 through 69 as if fully set forth herein.

71. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

72. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Battery

74. Plaintiff repeats and realleges paragraphs 1 through 73 as if fully set forth herein.

75. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

76. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

77. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The use of excessive force by defendants in punching plaintiff in the face, kicking and punching plaintiff was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

80. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

81. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

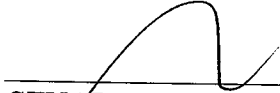
JURY DEMAND

82. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff JEREMY CHARLOTTEN demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 25, 2013

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
September 25, 2013


STUART E. JACOBS